

Kolkata Port Trust Employees (Classification, Control and Appeal) 4th Amendment Regulations, 2006

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[KOLKATA-PORT-TRUST-EMPLOYEES-CLASSIFICATION-CONTROL-AND-APPEAL-4TH-AMENDMENT-REGULATIONS-2006 of 2006](#)

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[Kolkata Port Trust Employees \(Classification, Control and Appeal\) 4th Amendment Regulations, 2006](#)

[Published vide Notification No. G.S.R. 284\(E\), 12th May, 2006](#)

[Ministry of Shipping, Road Transport and Highways](#)

[\(Department of Shipping\)](#)

[\(Ports Wing\)](#)

[G.S.R. 284\(E\). - In exercise of the powers conferred by Sub-section \(1\) of Section 124, read with Sub-section \(1\) of Section 132 of the Major Port Trusts Act, 1963 \(38 of 1963\), the Central Government hereby approves the Kolkata Port](#)

Trust Employees (Classification, Control and Appeal) Amendment Regulations, 2006 made by the Board of Trustees of Kolkata Port Trust as set out in the Schedule annexed to this Notification.

The said Regulations shall come into force from the date of publication of this Notification in the Official Gazette.

Schedule

Calcutta Port Trust Employees' (Classification, Control and Appeal) 4th Amendment Regulations, 2006

In exercise of the powers conferred by Clause (b) of Section 28 read with Section 124 of the Major Port Trusts Act, 1963 (Act 38 of 1963), the Board of Trustees for the Port of Kolkata hereby makes the following Regulations to amend the Calcutta Port Trust Employees' (Classification, Control and Appeal) Regulations, 1987.

1.

Short title and commencement.

- These Regulations shall be called Kolkata Port Trust Employees (Classification, Control and Appeal) 4th Amendment Regulations, 2006 and shall come into effect from the date of publication in the official Gazette.

2.

The Calcutta Port Trust Employee's (Classification, Control and Appeal) Regulations, 1987 shall Henceforth be known as Kolkata Port Trust Employee's (Classification, Control and Appeal) Regulations, 1987.

3.

In the Calcutta Port Trust Employee's (Classification, Control and Appeal) Regulation, 1987,

(a)

The word 'Kolkata' will replace 'Calcutta' wherever appearing.

(b)

The following Sub-clause (vi) shall be inserted after Regulation 3 :-

"Review Committee shall mean a committee constituted by the Board of Trustees for review of cases of suspension"

(c)

The following Sub-clauses (vii) and (viii) shall be inserted after Regulation 6 :-

"(vii) An order of suspension made or deemed to have been made under this regulation shall be reviewed by the authority competent to modify or revoke the suspension, before expiry of ninety days from the date of order of suspension, on the recommendation of the Review Committee constituted for the purpose and pass orders either extending or revoking the suspension. Subsequent reviews shall be made before expiry of the extended period of suspension. Extension of suspension shall not be for a period exceeding one hundred and eighty days at a time.

(viii)

Notwithstanding anything contained in Sub-regulation (v) and (vi), and order of suspension made or deemed to have been made under Sub-regulations (i) or (ii) of this regulation shall not be valid after a period of ninety days unless it is extended after review, for a further period before the expiry of ninety days."

Note: - The principal regulations were published in the Gazette of India vide G.S.R. 700(E) dated the 10th August 1987. The 1st Amendment regulation was published vide G.S.R. 474(E) dated the 20th April, 1988, the 2nd Amendment regulation was published vide G.S.R. 372(E) dated 27th March 1992 and the 3rd Amendment Regulation was published by G.S.R. 223(E) dated 26th March 2004.

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